

21STCV26958 21STCV26958

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Case Number: 21STCV26958 Hearing Date: July 10, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Set Aside/Vacate Dismissal (CCP 473)

The Motion to Set

Aside/Vacate Dismissal filed by Plaintiff

is granted.

BACKGROUND

Plaintiff Angel Yingli Chang (Plaintiff) filed this action

on June 22, 2021, against Laiying Shang (Defendant), sued individually and as the owner of the business Asian Massage, and later against Haiping Wang, who had purchased the business. Plaintiff alleges that Defendant employed her, failed to pay minimum and overtime wages, denied her meal and rest periods, failed to provide accurate wage statements, and on one occasion detained her against her will to demand payment.

The causes of action are: (1) Failure to Pay Wages; (2)

Failure to Pay Wages at Time of Termination or Separation; (3) Failure to Pay Overtime Wages; (4) Failure to Provide Meal and Rest Periods; (5) Failure to Provide Accurate and Complete Wage Statements; (6) Unfair and Fraudulent Business Practices; and (7) False Imprisonment.

On November 13, 2023, the Court granted terminating sanctions against Defendant, struck her answer, and entered her default. On February 23, 2026, Plaintiff settled with Haiping Wang, and the Court dismissed Jennings and her cross-complaint. The Court set an Order to Show Cause regarding dismissal and an Order to Show Cause regarding the failure to obtain a default judgment for April 23, 2026. Plaintiff's counsel did not appear on

April 23, 2026, and the Court vacated Defendant's default and dismissed the action without prejudice.

LEGAL STANDARD

The court has discretion to grant a party relief from a judgment, order, or other proceeding taken against that party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473 subd. (b) (§ 473(b)).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473(b).)

In addition to discretionary relief, Code of Civil Procedure section 473(b) provides that "the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any ... resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473.) "[I]f the prerequisites for the application of the mandatory provision of section 473, subdivision (b) exist, the trial court does not have discretion to refuse relief." (Leader v. Health Industries of America, Inc (2001) 89 Cal.App.4th 603, 612.)

ANALYSIS

I. Mandatory Relief

Plaintiff seeks mandatory relief based on her attorney's affidavit of fault.

"Although the language of the mandatory provision of section 473, subdivision (b), on its face, 'affords relief from unspecified 'dismissal' caused by attorney neglect, our courts have, through judicial construction, prevented it from being used indiscriminately by plaintiffs' attorneys as a 'perfect escape hatch' [citations] to undo dismissals of civil cases.'" [Citation.]" (Nacimiento Regional Water Management Advisory Com. v. Monterey County Water Resources Agency (2004) 122 Cal.App.4th 961, 967.) "[W]hen the Legislature amended section 473 to

include [the dismissal] provision, it left the discretionary dismissal statutes (§ 583.410 et seq.) intact. Under these statutes, the trial court may dismiss an action for failure to serve the complaint within two years or to bring the case to trial within three years (§ 583.420, subd. (a)), exercising its discretion according to the criteria prescribed by the Judicial Council. (§ 583.410, subd. (b); Cal. Rules of Court, rule 373(e).)" (Peltier v. McCloud River R.R. Co. (1995) 34 Cal.App.4th 1809, 1815-1816.) Therefore, courts have held that "when the Legislature incorporated dismissals into section 473 it intended to reach only those dismissals which occur through failure to oppose a dismissal motion--the only dismissals which are procedurally equivalent to a default. [Citations.]" (Id. at p. 1817.)

Here, the question is whether failure to appear at an OSC
Re: Failure to Prosecute Default Judgment is treated the same as a failure to oppose a dismissal motion. The Court concludes that it is.

In Tustin Plaza

Partnership v. Wehage (1994) 27 Cal.App.4th 1557, 1566, the court held "a plaintiff ... who has had a 'day in court' in a section 583.410 motion to dismiss is not allowed a second bite. ... Any other analysis would lead to an absurd result. A plaintiff who failed to convince the trial court that the prosecution of the case was diligent would have the case dismissed. That same plaintiff could then jump back into court on a section 473 motion, accompanied by an attorney's affidavit of negligence, and have the case reinstated based on the same facts offered, but discarded, in the hearing on the request to dismiss. The Legislature cannot have intended such an absurd result."

In the present circumstance, Plaintiff is not arguing that the delay in prosecution itself is a basis for 473(b) mandatory relief, but only the failure of counsel to appear at the OSC. This does not involve a second bite at the apple. Plaintiff's counsel admits to erroneously believing the hearing was set for April 30, not April 23. (Chen Decl. ¶ 6.) Plaintiff now provides the Default Judgment Package, which would have been provided earlier if not for the mistaken hearing date. (Chen Decl. ¶ 8, Ex. 8.)

II. Discretionary Relief

Alternatively, relief is warranted under the discretionary provision. Within the context of section 473, subdivision (b), neglect is

excusable if a reasonably prudent person under similar circumstances might have made the same error. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 929 (Austin).)

Counsel's declaration attests that he calendared the April 23, 2026 hearing for April 30, 2026, and for that reason did not appear. A single calendaring error of this kind is excusable neglect. (Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1135.) It is unlike the pattern of disorganization that renders an attorney's neglect inexcusable. (Cf. Huh v. Wang (2007) 158 Cal.App.4th 1406, 1423.) The declaration further explains that the error occurred amid the disruption following the death, in late January 2026, of the firm's founding partner and lead attorney on this matter, and counsel's loss of access to the case through the court's attorney portal. A reasonably prudent attorney in similar circumstances might have made the same error. (Austin, supra, 244 Cal.App.4th at p. 929.)

The Motion is timely. Plaintiff filed it within days of the April 23, 2026 order, well within the six-month period. (Code Civ. Proc., § 473, subd. (b).) The law favors disposition on the merits, and doubts are resolved in favor of the party seeking relief. (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233.) Defendant's Opposition does not argue that the dismissal was caused by anything other than counsel's mistake. Accordingly, the Court sets aside the April 23, 2026, order to the extent it dismissed this action and vacated Defendant's default.

CONCLUSION

Plaintiff's Motion is granted. The default entered against Defendant is reinstated. The Court will set an OSC re entry of default judgment.